

Here, the FAC alleges that the 911 operators directed Decedent to stay where she was and to stop searching for her vehicle (FAC ¶¶ 27-28) while simultaneously misdirecting rescue efforts by failing to convert GPS coordinates before providing them to rescuers (FAC ¶¶ 37, 39), and then failing to correct those errors as rescue efforts failed for days. (FAC ¶¶ 52, 57.) What is missing are allegations that the 911 emergency dispatchers acted in bad faith or were grossly negligent to overcome the presumption that they provided services in good faith and without gross negligence. (H&S Code § 1799.107(c).)

CHP points out that advising a person in need of rescue to stay put is a well-established search and rescue practice as it gives rescuers a “fixed, predictable location to search”, which is the opposite of an extreme departure. (Oppo. p. 2:12-15.) CHP argues that this advice shows “ordinary care, indeed good judgment, not its abandonment.” (Oppo. p. 2:15-16.) CHP also argues that the failure to convert the GPS coordinates does not amount to gross negligence because it is only alleged that such a failure “can” cause rescuers to search in the wrong location. (Oppo. p. 2:26-3:1.)

As cited by CHP, “[t]o avoid a finding of gross negligence, it is not required that a public entity must pursue all possible options. It is required only that they exercise some case, that they pursue a course of conduct which is not “an extreme departure from the ordinary standard of conduct.”” (*Decker v. City of Imperial Beach* (1989) 209 Cal.App.3d 349, 361.) Moreover, “...where there are no facts showing an extreme departure from the ordinary standard of conduct, the gross negligence exception to immunity fails.” (*Mubanda v. City of Santa Barbara* (2022) 74 Cal.App.5th 256, 264; see also, *Eastburn, supra.* at p. 1185.) Plaintiffs’ factual allegations do not constitute gross negligence. As CHP points out, the FAC actually demonstrates that the 911 operators exercised some care according to their alleged actions – having Decedent read aloud her GPS coordinates, recording the coordinates, telling her to stay put so rescuers could find her quickly, telling her not to search for her car, and to conserve her phone battery, among other allegations. (FAC ¶¶ 24-25, 28-29.) Thus, CHP is entitled to the immunity provided in H&S Code § 1799.107.

Demurrer SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 10 days. The court notes that Plaintiff still fails to plead facts sufficient to overcome immunity pursuant to Health and Safety Code § 1799.107.

Case Management Conference continued to 9.15.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601596	LEON YUEN VS ROLAND MARKETING LLC	DEMURRER ON COMPLAINT OF ROONEY LEON YUEN BY ROONEY LEON YUEN

Tentative Ruling: No tentative ruling. Motion is continued.

The hearing on the demurrer is continued to 8.25.26. The parties are ordered to **meet and confer via in person, teleconference or phone** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Cross-Defendant shall identify the

specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Cross-Complainant shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Cross-Defendant vacate the hearing on the demurrer, and file an Answer;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Cross-Complainant will file an amended cross-complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.